

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, June 3, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 3, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Pursuant to Code of Civil Procedure section 2015.5, Defendant's declaration submitted in support of his motion for summary judgment must be sworn under penalty of perjury.

The declaration of Steven M. Nailen was not made under penalty of perjury. The mandatory remedy is to provide Defendant the opportunity to resubmit his declaration to comply with section 2015.5.

Accordingly, this matter is CONTINUED to June 24, 2026, at 8:15 a.m. in Courtroom 8 for hearing on the motion for summary judgment. Defendant is ordered to resubmit his declaration and serve a copy of Plaintiff, should he wish for it to be considered by this Court in evaluating the merits of the motion for summary judgment, no later than June 17, 2026.

24CV-01683

Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.

Review of Case Status

Hearing is VACATED; no appearances required. The Court has reviewed the file and found no original application for distribution of interplead funds, despite the filing and receipt of an opposition and reply to the opposition. At the time of the filing of the application, the moving party must request a hearing date for the application. Cross-Defendant, Amber Apodaca, is ordered to re-file the application and request a hearing date, with notice to all parties. The opposition filed by Defendant, Auto Resources, Inc., and reply filed by Cross-Defendant, Amber Apodaca, need not be refiled prior to the hearing date. No further briefing is required, except by any interested party who may not yet have responded to the original application.

Case Management Conference

CONTINUED on the Court's own motion and to allow time for hearing of Cross-Defendant's application for distribution of interplead funds to February 8, 2027, at 10:00 a.m. in Courtroom 8.

25CV-01422

Francisco Pacheco, et al. vs General Motors, LLC

Application to Set Aside Order and Deny Plaintiff's Motion to Compel GM's PMK Deposition Pursuant to CCP Section 473(b)

Defendant's unopposed application to set aside order and deny Plaintiff's motion to compel GM's PMK deposition is GRANTED.

The Court will sign the order lodged with the court on May 1, 2026.

25CV-03336

System

Estate of Donna M. Acheson vs California State Teachers' Retirement

Review of Case Status

Appearance required.

26CV-00361

Petition of: Auriela Alcauter

Order to Show Cause Re: Name Change

Appearance required. Appear to show proof of publication of petition.

26CV-02336

Gemma Quintero vs Aniah Jenkins

Order to Show Cause Re: Restraining Order

Appearance required. Although no proof of service on Respondent was filed with the court, Respondent has appeared by filing a response on May 27, 2026, with proof of service of response on Petitioner filed on May 29, 2026.

26CV-02582

Amarjit Sahota vs Arturo Yanez Navarro

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Mandatory Settlement Conference
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 03, 2026
9:00 a.m.

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Case No.	Title / Description
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22CV-03057	Fernando Echeverria vs Doe 1, et al.
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Mandatory Settlement Conference

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandra Carl
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 03, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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25CV-01642	Wells Fargo Bank, N.A. vs. Stefannie Rivas
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Motion for Summary Judgment or in the Alternative Summary Adjudication

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including the declaration of plaintiff's Loan Workout Specialist Betsi L. Gibbons authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its cause of action for breach of contract. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.

In light of the Court's ruling on the motion for summary judgment, it is unnecessary to rule on Plaintiff's alternative motion for summary adjudication as to the sole cause of action for breach of contract.

Judgment shall be entered for Plaintiff and against Defendant Stefannie Rivas. The Court will sign the proposed order lodged with the moving papers. Plaintiff is entitled to recover reasonable attorney's fees and costs according to proof in accordance with rule 3.1702 of the California Rules of Court and Civil Code section 1717. Plaintiff is ordered to

prepare a proposed judgment, submit a cost memorandum and submit a declaration in support of a motion for reasonable attorney's fees.

The case management conference scheduled for September 11, 2026, is vacated.

25CV-02823 Edelmira Leon vs. Jorge Perez

Order of Examination – Jorge Perez

Appearance required.

25CV-03976 Chandrea Martinez vs. Marisela Duran

Citation to Appear on Civil Bench Warrant – Marisela Duran

Appearance required.

26CV-01826 Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Calendar
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 03, 2026
1:15 p.m.

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Case No.	Title / Description
26CV-00824	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Ex Parte Application for Order Setting Aside Default, Vacating Default Judgment and Staying Execution of Judgment
	Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Trials
Commissioner David Foster
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 03, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
24CV-05406	CKS Prime Investments LLC vs. Dione Jones
Court Trial	
Appearance required.	
25CV-02125	Absolute Resolutions Investments, LLC vs. Oscar Garcia
Court Trial	
Appearance required.	
26CV-01224	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
Court Trial: Unlawful Detainer	
Appearance required.	